

trust, however late the proof, operates retrospectively from the time of its creation. Even where a lease was granted to A., who afterwards became bankrupt, and *then* executed a declaration of trust in favour of B., a jury having found upon an issue directed from Chancery that A.'s name was *bonâ fide* used in the lease in trust for B., it was held that the assignees of A. had no title to the property (*e*).¹

(*e*) *Gardner v. Rowe*, 2 S. & S. see *Plymouth v. Hickman*, 2 Vern. 346; S. C. affirmed, 5 Russ. 258; and 167.

¹ *Creation of trusts*: No particular formality is required to establish an express trust. *Seymore v. Freer*, 8 Wall. 202; *Price v. Minot*, 107 Mass. 61; *Price v. Reeves*, 38 Cal. 457; *Pownal v. Taylor*, 10 Leigh. 183; *Currie v. White*, 45 N. Y. 822; *Reed v. Lukens*, 44 Pa. St. 200; *Paul v. Fulton*, 25 Mo. 156; *Jones v. Wilson*, 60 Ala. 332; *Conway v. Cutting*, 51 N. H. 408; *Ogden v. Larrabee*, 57 Ill. 389; *McClellan v. McClellan*, 65 Me. 500; *Norman v. Burnett*, 25 Miss. 183; *Brown v. Combs*, 29 N. J. (Law) 36; *Chamberlain v. Thompson*, 10 Conn. 243. A memorandum is sufficient. *Urann v. Coates*, 109 Mass. 581; but see *Homer v. Homer*, 107 Mass. 82. A letter affidavit deposition or answer to a bill in equity is sufficient. *Phillips v. So. Park Comm'ss*, 119 Ill. 626; *Moore v. Pickett*, 62 Ill. 158; *Montague v. Hayes*, 10 Gray, 609; *Barkworth v. Young*, 4 Drew. 1; *Phelps v. Seely*, 22 Gratt. 573; *Maccubbin v. Cromwell*, 7 Gill. & J. 175; *McLaurie v. Partlow*, 53 Ill. 340. Acknowledgments in letters may be sufficient. *Dyer's App.* 107 Pa. St. 446; see *Preston v. Casner*, 104 Ill. 262. Mere words of suggestion are sufficient. *Wood v. Seward*, 4 Redf. 271; *Foose v. Whitmore*, 82 N. Y. 405; 37 Am. Rep. 572. "In trust for B., wife of C., and her heirs and assigns forever" is a trust for her during coverture and a legal estate only afterwards. *Moore v. Stinson*, 144 Mass. 594; *Richardson v. Stodder*, 100 Mass. 528; *Ayer v. Ayer*, 16 Pick. 327. To give property to one for the support of another is sufficient to show that a trust was intended. *Loring v. Loring*, 100 Mass. 340; *Andrews v. Cape Ann Bank*, 3 Allen, 313; *Whiting v. Whiting*, 4 Gray, 236. Facts must be disclosed showing a fiduciary relation between the parties, as well as the terms of the trust. *Tatge v. Tatge*, 34 Minn. 272. The owner of land, having mortgaged it, conveyed to the mortgagee in consideration of a promise to pay him any surplus received, at the end of three years, and a trust was created when the mortgagee sold at an increase. *Freer v. Lake*, 115 Ill. 662. A. conveyed to B., who executed a writing that he purchased for C., thereby raising a trust through C., gave no consideration and made a fraudulent sale to D. *Titchenell v. Jackson*, 26 W. Va. 460. A declaration in buying that grantee was securing a one-half interest for A., sufficient. *McCandless v. Warner*, 26 W. Va. 754. It is not enough to say that "he was going to buy the land for his son." *Lloyd v. Lynch*, 28 Pa. St. 419; 70 Am. Rep. 137. Neither is a written acknowledgment by one party that another is entitled to certain property, without consideration for such acknowledgment. *Thompson v. Branch*, Meigs, 390; 33 Am. Dec. 163. A. paid for land which, by fraud, he conveyed to another, and he could claim a trust for himself, but his heirs could not. *Cooper v. Cockrum*, 87 Ind. 443. A voluntary agreement, without consideration, will not be enforced if the settlor intended some other act. *Lloyd v. Brooks*, 34 Md. 27; *Swan v. Frick*, 34 Md. 139. There must be an